IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No221

CP(CAA)/59(AHM)2022
in
CA(CAA)/22(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

SMP Constructions Pvt Ltd **.....Applicant**
SMP Infrastructure Pvt Ltd

.....Respondent

Order delivered on ..24/04/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Dhinal Shah, Adv. a/w. Mr. Ravi Raj Singh, Adv.
For the Income Tax Department	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta, Adv.
For the RD	: Mr. Shiv Pal Singh, Assistant Director (NWR)

ORDER

Learned Counsel Mr. Dhinal Shah appears for the petitioner companies states that since this scheme is relating to demerger, both the companies will survive and thereafter, the report of Official Liquidator is not required. We notice from the record that notice was issued to the OL, but no one has appeared nor report has been filed.

Mr. Shiv Pal Singh Assistant Director appears for the Regional Director (RD) and states that there are major objections raised in para (f) and para (h) of their report. Learned Counsel for the petitioner companies states that they have already responded to these observations in their affidavit dated 10.02.2023. Mr. Singh appearing for the RD office states that they have not received the copy of the affidavit.

Learned Counsel for the petitioner companies undertakes to give copy of the affidavit to the RD office within two days. The RD office may file response, if any, to the said affidavit within one week thereafter.

Learned Counsel for the Income Tax Department states that there is a demand of Rs. 13,104 in the case of applicant company no. 1 and NIL demand in the case of applicant no. 2. She states that since both the companies will survive and have undertaken to pay demand as per law, the Income Tax Department has no objection if the scheme is approved.

List for hearing on 11.05.2023.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

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